

Paper V: Environmental Law

UNIT I: Environment, Ecology and Pollution — Basic Concepts

1. Meaning and Definition of Environment

- **Etymology:** “Environment” derives from the French word *environner*, meaning “to encircle” or “to surround.”
- **General meaning:** The sum total of all surroundings — physical, biological, social, and cultural — that affect the life and development of an organism.
- **Statutory definition:** Section 2(a) of the **Environment (Protection) Act, 1986** defines “environment” to include *water, air, and land, and the inter-relationship which exists among and between water, air and land, and human beings, other living creatures, plants, micro-organisms, and property.*
- This is a wide, inclusive definition that covers both abiotic (non-living: air, water, soil, minerals) and biotic (living: plants, animals, microorganisms, humans) components, and importantly the *inter-relationships* among them.
- Environment operates at multiple scales: **micro-environment** (immediate surroundings) and **macro-environment** (global systems).

2. Ecology

- **Definition:** Ecology is the scientific study of the relationships between living organisms and their environment, coined by German biologist Ernst Haeckel (1866) from the Greek *oikos* (house) and *logos* (study).
- **Levels of ecological organisation:** Individual → Population → Community → Ecosystem → Biome → Biosphere.
- **Key concepts:**
 - *Habitat:* The natural home/place of an organism.
 - *Niche:* The functional role of an organism in its habitat.
 - *Food chain and food web:* Transfer of energy from producers to consumers.
 - *Trophic levels:* Producers, primary/secondary/tertiary consumers, decomposers.
 - *Ecological balance:* The state of dynamic equilibrium within a community where species composition remains relatively stable.

3. Ecosystem

- **Definition:** A structural and functional unit of nature comprising living organisms (biotic community) and their non-living physical environment (abiotic factors), interacting as a system (coined by A.G. Tansley, 1935).
- **Components:**
 - *Abiotic:* sunlight, temperature, water, soil, minerals, atmosphere.

- *Biotic*: producers (autotrophs), consumers (heterotrophs), decomposers (saprotrophs).
- **Types**: Natural ecosystems (forest, grassland, desert, aquatic — freshwater and marine) and artificial/man-made ecosystems (agricultural land, aquarium, urban ecosystem).
- **Functions**: Energy flow, nutrient/biogeochemical cycling (carbon, nitrogen, water cycles), and maintenance of ecological balance.
- **Legal significance**: Ecosystem degradation (deforestation, wetland destruction) is now approached in law through the “ecosystem approach,” notably in the Biological Diversity Act, 2002 and wetland/coastal regulations.

4. Biosphere

- **Definition**: The global sum of all ecosystems — the life-supporting zone of the earth where land (lithosphere), water (hydrosphere), and air (atmosphere) meet and interact to support life.
- It is the narrow zone of the earth (a few kilometres above and below sea level) where life exists.
- The biosphere is a **closed system for matter** (matter is recycled) but an **open system for energy** (solar energy enters continuously; heat is lost).
- Legal relevance: forms the basis for the “common heritage of mankind” and “common concern of humankind” principles in international environmental law.

5. Biomes

- **Definition**: Large-scale ecological communities of flora and fauna occupying major habitats characterised by climate, vegetation type, and geography.
- **Major biomes**: Tropical rainforest, temperate forest, grassland/savannah, desert, taiga (coniferous forest), tundra, and aquatic biomes (freshwater and marine).
- India spans several biomes/biogeographic zones — Himalayan, Gangetic plain, Deccan plateau, Western Ghats, coastal, desert (Thar), and island ecosystems — which is why India is recognised as one of the world’s **mega-biodiverse** countries.

6. Ozone Depletion

- **Ozone layer**: A layer of ozone (O₃) in the stratosphere (15–35 km above earth) that absorbs most of the sun’s harmful ultraviolet (UV-B) radiation.
- **Causes of depletion**: Chlorofluorocarbons (CFCs), halons, carbon tetrachloride, methyl bromide, and other ozone-depleting substances (ODS) used in refrigerants, aerosols, fire extinguishers, and industrial solvents release chlorine and bromine atoms that catalytically destroy ozone molecules.
- **Ozone hole**: The severe seasonal thinning of ozone observed over Antarctica, discovered in the mid-1980s.
- **Effects**: Increased UV-B radiation reaching earth causes skin cancer, cataracts, immune suppression in humans; damages phytoplankton, crops, and marine ecosystems.

- **International response:** Vienna Convention for the Protection of the Ozone Layer (1985) and the **Montreal Protocol on Substances that Deplete the Ozone Layer (1987)** — a landmark and largely successful treaty phasing out ODS.

7. Global Warming

- **Definition:** The long-term rise in the average temperature of the earth's atmosphere and oceans due to increased concentration of greenhouse gases (GHGs).
- **Greenhouse effect:** Natural process by which GHGs (CO₂, methane, nitrous oxide, water vapour, CFCs) trap heat in the atmosphere; global warming refers to the *enhancement* of this effect due to anthropogenic emissions.
- **Causes:** Burning of fossil fuels, deforestation, industrialisation, vehicular emissions, agriculture (methane from livestock and paddy fields), and land-use change.
- **Effects:** Rising sea levels, melting glaciers and polar ice, extreme weather events, loss of biodiversity, threats to food and water security, displacement of populations ("climate refugees").
- **Legal/policy response:** UNFCCC (1992), Kyoto Protocol (1997), Paris Agreement (2015) — discussed in Unit V.

8. Climatic Changes

- **Definition:** Long-term shifts in temperature, precipitation, wind patterns, and other elements of climate, whether due to natural variability or human activity.
- **Distinction:** "Weather" is short-term and local; "climate" is the long-term pattern; "climate change" refers to statistically significant variation in climate persisting for an extended period.
- **Consequences:** Altered monsoon patterns (critical for India's agriculture), desertification, increased frequency of cyclones/floods/droughts, threat to coastal and island nations.

9. Need for Preservation, Conservation, and Protection of the Environment

- **Preservation:** Keeping natural resources in their pristine, untouched state.
- **Conservation:** Planned and sustainable management/use of natural resources to prevent exploitation, waste, and destruction.
- **Protection:** Active legal and administrative measures to prevent and remedy environmental harm.
- **Rationale:**
 1. Survival and health of present and future generations (intergenerational equity).
 2. Sustainable economic development.
 3. Preservation of biodiversity and ecological balance.
 4. Ethical/moral duty towards other living beings.
 5. Constitutional mandate (Articles 48A, 51A(g), and Article 21 as judicially expanded).

10. Ancient Indian Approach to the Environment

- Indian civilisation has traditionally treated nature as sacred; rivers (Ganga, Yamuna), mountains, trees (peepal, banyan), and animals (cow, snake) were worshipped or accorded reverence.
- **Vedic literature:** Hymns in the Rig Veda, Atharva Veda praise Prithvi (Earth), Varuna (water), Vayu (air) as deities; emphasis on harmony between man and nature (“Vasudhaiva Kutumbakam” — the world is one family).
- **Dharmashastras and Arthashastra:** Kautilya’s Arthashastra prescribed punishments for cutting trees and polluting water bodies, and created state departments for forest management.
- **Buddhist and Jain philosophy:** Emphasis on *ahimsa* (non-violence) towards all living beings, respect for flora and fauna.
- **Bishnoi movement** (historical roots pre-dating “Chipko”): Community sacrifice to protect trees, later inspiring the modern Chipko Movement (1970s).
- This tradition is often cited by Indian courts (e.g., in cases invoking the Public Trust Doctrine) as evidence of an indigenous ethic of environmental stewardship underlying modern environmental jurisprudence.

11. Environmental Degradation and Pollution

- **Environmental degradation:** The deterioration of environmental quality through depletion of resources (soil, water, air, forests) and destruction of ecosystems, resulting from both natural and anthropogenic causes.
- **Pollution:** Introduction of contaminants (physical, chemical, or biological agents) into the environment causing adverse change, defined under Section 2(c) of the Environment (Protection) Act, 1986 as the presence of any environmental pollutant.

12. Kinds, Causes, and Effects of Pollution

Kind	Major Causes	Effects
Air pollution	Vehicular emissions, industrial smoke, burning of fossil fuels, crop residue burning	Respiratory diseases, acid rain, smog, global warming
Water pollution	Industrial effluents, sewage discharge, agricultural run-off (pesticides/fertilisers), oil spills	Waterborne diseases, eutrophication, destruction of aquatic life
Land/soil pollution	Industrial waste, pesticides, improper waste disposal, mining	Loss of soil fertility, contamination of food chain
Noise pollution	Traffic, industrial machinery, loudspeakers, construction	Hearing loss, stress, hypertension
Radioactive pollution	Nuclear plants, nuclear testing, improper disposal of radioactive waste	Genetic mutation, cancer
Thermal pollution	Discharge of heated water from power plants/industries	Disruption of aquatic ecosystems
Marine	Oil spills, plastic waste, industrial	Destruction of marine

Kind	Major Causes	Effects
pollution	discharge into seas	biodiversity, coral bleaching

UNIT II: Common Law Remedies and Statutory Remedies Against Pollution

1. Common Law Remedies

(a) Trespass

- **Definition:** Direct and unlawful physical interference with another's possession of land or property.
- **Application to pollution:** Where pollutants (e.g., smoke, dust, effluents) are directly and physically deposited on another's land, an action in trespass may lie, since trespass is actionable *per se* (without proof of damage), unlike nuisance.
- **Key case:** *Gregory v. Piper* (1829) — physical invasion of land by rubbish held to be trespass.
- Distinction from nuisance: trespass requires *direct* interference; if the interference is indirect/consequential (e.g., smoke drifting), it is more properly nuisance.

(b) Negligence

- **Definition:** Breach of a legal duty of care resulting in damage to the plaintiff, which the defendant ought reasonably to have foreseen.
- **Essential elements:** (i) Duty of care owed by the defendant to the plaintiff; (ii) breach of that duty; (iii) resulting damage which is not too remote.
- **Application to pollution:** Industries owe a duty of care to persons/property in the vicinity of their operations; failure to take reasonable precautions against escape of pollutants (e.g., leakage of toxic effluents) constitutes negligence.
- **Leading case:** *Donoghue v. Stevenson* (1932) — established the modern “neighbour principle” foundational to negligence law, later applied in pollution contexts.

(c) Theories of Strict Liability and Absolute Liability

Strict Liability — Rule in *Rylands v. Fletcher* (1868)

- Where a person brings onto his land, for his own purposes, something likely to do mischief if it escapes, and it does escape, he is liable for all damage which is the natural consequence of the escape, **even without negligence or fault**.
- **Elements:** (i) Non-natural use of land; (ii) escape of a dangerous thing; (iii) resulting damage.
- **Exceptions** (defences) recognised under English common law: act of God, act of a stranger, plaintiff's own fault, statutory authority, and consent of the plaintiff.
- This rule was applied and expanded in India for a time but was found inadequate for hazardous industries because of its numerous exceptions.

Absolute Liability — *M.C. Mehta v. Union of India* (Oleum Gas Leak Case), AIR 1987 SC 1086

- Arising from the oleum gas leak from Shriram Foods and Fertilizers in Delhi, the Supreme Court, per **Bhagwati, C.J.**, held that the rule in *Rylands v. Fletcher* — evolved in 19th-century England — was not suited to modern industrial society in India.
- The Court evolved a **new rule of Absolute Liability**: where an enterprise is engaged in a hazardous or inherently dangerous activity, and harm results to anyone on account of an accident in the operation of that activity, the enterprise is **absolutely liable** to compensate all those affected, and this liability is **not subject to any of the exceptions** applicable to the strict liability rule under *Rylands v. Fletcher*.
- The measure of compensation must be correlated to the magnitude and capacity of the enterprise, so that it acts as a deterrent.
- This principle was later applied in the aftermath of the **Bhopal Gas Tragedy (Union Carbide case)** and has become the cornerstone of Indian environmental tort jurisprudence, subsequently also read into statutory schemes such as the **Public Liability Insurance Act, 1991** and the **National Green Tribunal Act, 2010** (Section 17, “no-fault liability”).

2. Relevant Provisions of BNS, BNSS (formerly IPC, CrPC) and CPC for Abatement of Public Nuisance in Pollution Cases

Under the Bharatiya Nyaya Sanhita (BNS), 2023 [corresponding to former IPC provisions]

- **Public Nuisance**: Defined similarly to the old Section 268 IPC — an act or illegal omission causing common injury, danger, or annoyance to the public or to people in general who dwell in the vicinity.
- Provisions penalise:
 - Fouling water of public springs/reservoirs so as to render it unfit for use (corresponding to former Section 277 IPC).
 - Making the atmosphere noxious to health (corresponding to former Section 278 IPC — negligent act likely to spread infection/pollution of air).
 - Negligent conduct with poisonous substances, fire, or noxious substances.
- These provisions have been carried forward in substance under the BNS with renumbering, retaining the core offences relating to environmental public nuisance.

Under the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023 [corresponding to former CrPC]

- **Section 152 BNSS** (corresponding to **Section 133 CrPC**): Empowers a District Magistrate/Sub-Divisional Magistrate/Executive Magistrate, on receiving information, to make a **conditional order** requiring a person to remove a public nuisance (e.g., stop an offensive trade, remove an obstruction, or abate pollution) within a specified time, or to show cause why the order should not be made absolute.

- This is a **speedy, summary remedy** widely used in pollution cases (e.g., against noise from factories, industrial effluents, brick kilns).
- Landmark case: **Municipal Council, Ratlam v. Vardhichand**, AIR 1980 SC 1622 — the Supreme Court (Krishna Iyer, J.) held that a Magistrate’s power under Section 133 CrPC to abate public nuisance (open drains, pollution) is a mandatory duty; a local authority cannot plead lack of funds as a defence against its statutory obligation to abate a public nuisance; “the law will relentlessly be enforced and the plea of poor finance will be poor alibi.”
- Related sections allow police officers to prevent public nuisance and for the Magistrate to take urgent measures in cases of nuisance likely to cause danger to human life or health.

Under the Civil Procedure Code (CPC), 1908

- **Section 91, CPC:** Provides for suits in respect of public nuisance — the Advocate-General, or two or more persons with the leave of the Court, may institute a suit for a declaration and injunction or other appropriate relief, even without proof of special/particular damage, where a public nuisance affects the community.
- **Order I Rule 8, CPC:** Provides for representative suits, allowing one or more persons to sue on behalf of all persons having the same interest — used in public interest environmental litigation before the PIL era matured.
- These provisions permit civil courts to grant injunctions restraining polluting activity that constitutes a public nuisance.

3. Remedies Under the Specific Relief Act, 1963

- **Section 38:** Perpetual injunction may be granted to prevent the breach of an obligation, including in cases of continuing nuisance from pollution (e.g., restraining a factory from discharging effluents).
- **Section 34:** Declaratory relief — a person may seek a declaration of his legal right where it is denied or threatened (relevant where pollution threatens established rights, e.g., riparian rights).
- **Mandatory injunctions** (Section 39 read with Section 38) may be granted to compel a polluter to take positive steps (e.g., install effluent treatment plant) to prevent continuance of a wrongful act.
- Injunctions (temporary/interlocutory under Order XXXIX CPC, and perpetual under the SRA) are the most commonly sought civil remedy in pollution litigation because damages alone are often inadequate to stop ongoing environmental harm.

4. Reliefs Against Smoke and Noise

- Smoke and noise nuisances are actionable both as **private nuisance** (unreasonable interference with use/enjoyment of one’s property) and **public nuisance** (where the community at large is affected).
- **Private nuisance test:** Reasonableness of user, having regard to locality, duration, and intensity of the interference (*St. Helen’s Smelting Co. v. Tipping* (1865)) — distinction drawn between nuisance causing material/physical damage to property,

which is actionable regardless of locality, and nuisance causing mere personal discomfort, where the character of the locality is relevant).

- Reliefs include: injunction (prohibitory/mandatory), damages, and abatement (self-help remedy of removing the nuisance, exercised with caution and after notice).

5. Noise Pollution

- **Definition:** Unwanted or excessive sound that disrupts normal activities and adversely affects human health and the environment.
 - **Regulatory framework: Noise Pollution (Regulation and Control) Rules, 2000**, framed under the Environment (Protection) Act, 1986 — prescribe ambient noise standards for industrial, commercial, residential, and silence zones, restrict use of loudspeakers, and empower authorities to take action against violators.
 - **Judicial approach:** In cases such as **Noise Pollution (V), In re**, AIR 2005 SC 3136, the Supreme Court held that the right to live in a decent environment, including freedom from noise pollution, is part of the right to life under Article 21, and issued directions regulating use of loudspeakers and bursting of firecrackers.
 - Remedies against noise pollution include complaints under the Rules, applications before the SDM/DM under BNSS Section 152 (formerly CrPC s.133), civil suits for nuisance, and writ petitions invoking Article 21.
-

UNIT III: Protective Legislation — Forests, Wildlife, Pollution Control, and Regulatory Bodies

1. Law Relating to Preservation of Forests

- **Indian Forest Act, 1927:** Provides for constitution of reserved, protected, and village forests; regulates movement of forest produce; prescribes penalties for forest offences.
- **Forest (Conservation) Act, 1980** (renamed **Van (Sanrakshan Evam Samvardhan) Adhiniyam** by 2023 amendment): Restricts de-reservation of forests and use of forest land for non-forest purposes without prior approval of the Central Government; enacted to check large-scale deforestation.
- **Landmark case:** *T.N. Godavarman Thirumulpad v. Union of India* (the “Forest Case”), a continuing mandamus since 1996, wherein the Supreme Court gave an expansive definition to “forest land” (dictionary meaning, irrespective of ownership/classification) and constituted the Central Empowered Committee (CEC) to monitor forest protection across India.

2. Wildlife, Endangered Species, Marine Life, Coastal Ecosystems, Lakes

- **Wild Life (Protection) Act, 1972:** Provides for protection of wild animals, birds, and plants; creates Schedules (I–VI) according to degree of protection; establishes Sanctuaries, National Parks, Conservation Reserves, and Community Reserves;

regulates/prohibits hunting; regulates trade in animal products; establishes the National Board for Wildlife and State Boards for Wildlife.

- **Coastal Regulation Zone (CRZ) Notifications** (issued under the Environment (Protection) Act, 1986; presently the **CRZ Notification, 2019**): Regulate developmental activities within specified distances of the High Tide Line to protect coastal ecosystems, mangroves, and coral reefs, and to safeguard livelihoods of fishing communities.
- **Wetlands (Conservation and Management) Rules, 2017**: Protect lakes, wetlands and water bodies from encroachment, pollution, and unsustainable use; India is also a party to the **Ramsar Convention** (discussed in Unit V) for wetlands of international importance.
- **Marine life**: Protected under the Wild Life (Protection) Act (Schedule I includes several marine species), the Indian Fisheries Act, 1897, and the Merchant Shipping Act, 1958 (for prevention of marine oil pollution), alongside international conventions (MARPOL).

3. Prevention of Cruelty to Animals

- **Prevention of Cruelty to Animals Act, 1960**: Penalises cruelty to animals, regulates experimentation on animals, and establishes the Animal Welfare Board of India.
- Read with Article 51A(g) of the Constitution (duty to have compassion for living creatures) and judicial pronouncements recognising animal welfare (e.g., *Animal Welfare Board of India v. A. Nagaraja*, (2014) — recognising five freedoms of animals and reading Article 21 protections extensively, in the context of the Jallikattu litigation).

4. Water Pollution — The Water (Prevention and Control of Pollution) Act, 1974

- Enacted pursuant to the **Stockholm Declaration, 1972**, under Article 252 of the Constitution (resolutions passed by states enabling Parliament to legislate).
- **Objectives**: Prevention and control of water pollution, and maintaining/restoring wholesomeness of water.
- **Key features**:
 - Establishes the **Central Pollution Control Board (CPCB)** and **State Pollution Control Boards (SPCBs)**.
 - Prohibits discharge of pollutants into streams, wells, or sewers beyond prescribed standards without consent of the SPCB (Section 25/26 — “consent to establish/operate”).
 - Empowers Boards to inspect, sample, and take legal action against defaulters.
 - Creates a special tribunal-like appellate mechanism and penal provisions (Sections 41–49) including imprisonment and fine for non-compliance and for continuing offences.
 - **Water (Prevention and Control of Pollution) Cess Act, 1977**: Levies cess on water consumption by industries/local authorities to augment resources of the Boards and encourage water conservation.

5. Air Pollution — The Air (Prevention and Control of Pollution) Act, 1981

- Enacted pursuant to the Stockholm Declaration, 1972, to implement decisions taken at Stockholm relating to air quality.
- **Key features:**
 - Empowers the CPCB/SPCBs (already constituted under the Water Act) to also implement air pollution control, and to declare **Air Pollution Control Areas**.
 - Requires prior “consent” of the SPCB before establishing or operating any industrial plant in a pollution control area (Section 21).
 - Prescribes emission standards and empowers Boards to issue directions, including for closure, prohibition, or regulation of industry, and for stoppage of electricity/water supply (Section 31A, added later, aligning with EPA powers).
 - Penal provisions for non-compliance under Sections 37–46.

6. Environment (Protection) Act, 1986 (EPA)

- **Background:** Enacted in the aftermath of the **Bhopal Gas Tragedy (1984)**, as an “umbrella legislation” under Article 253 of the Constitution to give effect to decisions taken at the Stockholm Conference, 1972, and to fill gaps in existing environmental laws.
- **Salient features:**
 - Section 3: Empowers the Central Government to take all measures necessary to protect and improve the environment, including laying down standards for emission/discharge, restricting industrial location, and managing hazardous substances.
 - Section 5: Power to issue directions (including closure, prohibition, or regulation of any industry, and stoppage/regulation of electricity, water, or any other service) — a wide and potent power.
 - Section 7: Prohibits discharge of environmental pollutants in excess of prescribed standards.
 - Section 8/9: Duty to handle hazardous substances in accordance with procedure, and duty to furnish information of accidents.
 - Section 15: Penalty — imprisonment up to five years or fine up to ₹1 lakh (with additional fine for continuing contravention), or both; enhanced punishment on repetition.
 - Section 19: Cognizance of offences only on complaint by specified authorities or on a 60-day prior notice by any person to such authority (a much-criticised restriction on citizen-initiated prosecution).
 - Various rules framed under the EPA include the Hazardous Waste Rules, Environment Impact Assessment (EIA) Notification, CRZ Notification, Noise Pollution Rules, Bio-Medical Waste Rules, Plastic Waste Management Rules, etc.

7. Biological Diversity Act, 2002

- Enacted to give effect to India's obligations under the **Convention on Biological Diversity (CBD), 1992 (Rio Earth Summit)**.
- **Objectives:** Conservation of biological diversity, sustainable use of its components, and fair and equitable sharing of benefits arising from the use of biological resources and associated traditional knowledge.
- **Institutional structure:**
 - **National Biodiversity Authority (NBA)** — regulates access to biological resources by foreign entities and requires approval for obtaining biological resources/knowledge for research, commercial use, or IPR applications.
 - **State Biodiversity Boards (SBBs)**.
 - **Biodiversity Management Committees (BMCs)** at local/panchayat level — maintain People's Biodiversity Registers.
- Prohibits transfer of Indian genetic material outside India without approval, and regulates bio-piracy.

8. Hazardous Wastes (Management, Handling, and Transboundary Movement) Rules

- Framed under the EPA, 1986 (presently the **Hazardous and Other Wastes (Management and Transboundary Movement) Rules, 2016**, superseding earlier 1989/2008 Rules).
- Regulate generation, collection, storage, transport, treatment, and disposal of hazardous waste; require authorisation from SPCBs; implement India's obligations under the **Basel Convention on the Control of Transboundary Movements of Hazardous Wastes, 1989** (restricting import/export of hazardous waste, particularly from developed to developing countries).

9. Environmental Pollution Control Mechanism — Institutional Framework

- **CPCB and SPCBs:** Standard-setting, monitoring, consent mechanisms, and enforcement under the Water Act, Air Act, and EPA.
- **Ministry of Environment, Forest and Climate Change (MoEFCC):** Apex administrative authority; grants environmental clearances under the EIA Notification, 2006.
- **National Environment Tribunal Act, 1995:** Enacted to provide for strict liability for damage arising from accidents involving hazardous substances, and speedy relief to victims — largely remained un-notified/non-operational in practice.
- **National Environment Appellate Authority Act, 1997:** Established the NEAA to hear appeals against environmental clearance decisions under the EPA — also largely ineffective, with limited benches and slow functioning; it was eventually replaced in substance by the NGT.
- Both these bodies are widely regarded as having failed to achieve their objectives due to non-implementation, prompting the enactment of the more robust National Green Tribunal Act, 2010.

10. National Green Tribunal (NGT) — Powers and Jurisdiction

- **National Green Tribunal Act, 2010:** Enacted for effective and expeditious disposal of cases relating to environmental protection, conservation of forests, and other natural resources, and for giving relief/compensation for damage to persons and property, and for matters connected therewith — replacing the National Environment Tribunal Act, 1995 and National Environment Appellate Authority Act, 1997.
 - **Jurisdiction (Section 14):** The NGT has jurisdiction over all civil cases involving a **substantial question relating to environment** (including enforcement of any legal right relating to environment) arising out of the implementation of laws specified in **Schedule I** — the Water Act 1974, Water Cess Act 1977, Forest (Conservation) Act 1980, Air Act 1981, Environment (Protection) Act 1986, Public Liability Insurance Act 1991, and Biological Diversity Act 2002.
 - **Powers:**
 - **Section 15:** Power to provide relief and compensation to victims of pollution/environmental damage, restitution of property, and restitution of the environment.
 - **Section 17:** Provides for liability to pay relief/compensation on the principle of “no-fault liability” (reflecting the Absolute Liability rule from *M.C. Mehta*).
 - **Section 20:** The Tribunal shall apply the principles of **sustainable development, the precautionary principle, and the polluter pays principle** while passing orders/decisions.
 - Civil court-like powers (summoning, discovery, examining witnesses) under the Code of Civil Procedure, though not strictly bound by CPC or Evidence Act procedure (guided by principles of natural justice).
 - **Section 22:** Appeal against NGT orders lies directly to the Supreme Court.
 - The NGT can also take **suo motu cognizance** in appropriate cases (as recognised judicially, though the express provision was debated) and has original as well as appellate jurisdiction.
 - **Landmark applications:** NGT orders relating to the Ganga pollution, Yamuna floodplain, Art of Living event, Delhi air pollution (odd-even/pollution directions), etc.
-

UNIT IV: Constitutional Framework and Judicial Role

1. Article 48A — Directive Principle

- Inserted by the **42nd Constitutional Amendment Act, 1976**, under Part IV (Directive Principles of State Policy).
- Reads: *“The State shall endeavour to protect and improve the environment and to safeguard the forests and wildlife of the country.”*

- Though not directly enforceable in a court of law (Article 37), it casts a positive obligation on the State and is used by courts to interpret other provisions, especially Article 21.

2. Article 51A(g) — Fundamental Duty

- Also inserted by the 42nd Amendment, 1976, under Part IVA.
- Casts a duty on **every citizen** of India “*to protect and improve the natural environment including forests, lakes, rivers and wildlife, and to have compassion for living creatures.*”
- Courts have relied on this provision to impose obligations on citizens and to support directions for environmental protection (e.g., in cases relating to tree-felling, vehicular pollution).

3. Right to a Wholesome Environment

- Not expressly stated in the Constitution but **judicially read into Article 21** (right to life and personal liberty) through a series of landmark decisions.
- **Key cases:**
 - *Rural Litigation and Entitlement Kendra v. State of U.P.* (Dehradun Quarrying Case), AIR 1988 SC 2187 — one of the earliest environmental PILs; Supreme Court ordered closure of limestone quarries in the Mussoorie hills causing ecological damage, treating the right to a healthy environment as part of Article 21.
 - *Subhash Kumar v. State of Bihar*, AIR 1991 SC 420 — held that the right to life under Article 21 includes the **right to enjoyment of pollution-free water and air** for full enjoyment of life.
 - *M.C. Mehta v. Union of India* (various — Ganga Pollution Case, Taj Trapezium Case, Vehicular Pollution Case) — extended Article 21 to environmental protection across multiple contexts.
 - *Virender Gaur v. State of Haryana* (1995) — held that Article 21 protects the right to a decent, healthy, pollution-free environment.

4. Right to Development

- Recognised as an inherent human right (also under the **UN Declaration on the Right to Development, 1986**, and reiterated at the Rio Summit, 1992).
- Indian courts have consistently sought to **balance** the right to development with environmental protection through the doctrine of **sustainable development** — the idea that development must meet present needs without compromising the ability of future generations to meet their own needs (Brundtland Report, “Our Common Future,” 1987).
- **Vellore Citizens’ Welfare Forum v. Union of India**, AIR 1996 SC 2715 — the Supreme Court held that sustainable development, and its essential features (the **precautionary principle** and the **polluter pays principle**), are part of the environmental law of India, and indeed part of Article 21.

5. Restrictions on Freedom of Trade, Profession, and Occupation (Article 19(1)(g) read with Article 19(6))

- The right to carry on any trade, business, or occupation under Article 19(1)(g) is **not absolute** and is subject to reasonable restrictions under Article 19(6) in the interest of the general public.
- Courts have consistently upheld environmental regulations — closure of polluting industries, relocation orders, denial of licences — as reasonable restrictions in the interest of public health and environment.
- **M.C. Mehta v. Union of India** (Taj Trapezium Case), (1997) 2 SCC 353 — ordered polluting industries around the Taj Mahal to either switch to natural gas or relocate, holding that the right to carry on trade must yield to environmental protection.

6. Immunity of Environmental Legislation from Judicial Scrutiny — Article 31C

- Article 31C, inserted by the **25th Amendment (1971)** and substantially amended by the 42nd Amendment (1976) (the extended version was struck down in *Minerva Mills v. Union of India*, AIR 1980 SC 1789, to the extent it gave blanket protection to all DPSPs), provides that laws giving effect to the Directive Principles in **Article 39(b) and (c)** shall not be void merely for being inconsistent with Articles 14 and 19, and shall not be questioned on the ground of taking away those rights.
- Insofar as environmental legislation can be shown to give effect to Article 39(b)/(c) (equitable distribution of material resources for the common good), it can invoke this constitutional immunity, though this linkage is not automatic and must be established.
- After *Minerva Mills*, only laws relatable to Article 39(b) and (c) specifically (not all DPSPs) enjoy this immunity.

7. Legislative Powers of the Centre and State Governments

- **Seventh Schedule distribution:**
 - **Union List:** Entries such as regulation of mines and mineral development (Entry 54), regulation of inter-State rivers (Entry 56).
 - **State List:** Public health and sanitation (Entry 6), water supplies, irrigation and canals (Entry 17), fisheries (Entry 21).
 - **Concurrent List:** Forests (Entry 17A), protection of wild animals and birds (Entry 17B), population control and family planning — both inserted by the 42nd Amendment, 1976, shifting forests and wildlife from State to Concurrent List.
- **Article 252:** Parliament can legislate on a State subject if two or more States consent by resolution — the basis for enactment of the Water (Prevention and Control of Pollution) Act, 1974.
- **Article 253:** Parliament has power to legislate for the whole of India to implement international treaties/conventions/decisions — the basis for the Air Act, 1981 and the Environment (Protection) Act, 1986 (implementing the Stockholm Declaration, 1972).

8. Writ Jurisdiction

- **Article 32** (Supreme Court) and **Article 226** (High Courts) empower courts to issue writs (habeas corpus, mandamus, prohibition, certiorari, quo warranto) for enforcement of fundamental rights (Art. 32) and for any other purpose (Art. 226, wider scope).
- Environmental jurisprudence in India has developed overwhelmingly through **Public Interest Litigation (PIL)** under these Articles, with relaxed rules of *locus standi* allowing any public-spirited citizen or organisation to approach the court on behalf of affected persons or the environment itself, and innovative remedies such as continuing mandamus (e.g., the Godavarman forest case, running for decades).

9. Role of the Indian Judiciary in the Evolution of Environmental Jurisprudence

The Supreme Court and High Courts have, through a body of PIL-driven case law, evolved several foundational doctrines:

- **Sustainable Development** — *Vellore Citizens' Welfare Forum* (1996).
- **Precautionary Principle** — anticipatory action to prevent environmental harm even absent full scientific certainty; environmental measures must anticipate, prevent, and attack the causes of degradation; burden of proof shifts to the developer/industrialist to show the activity is environmentally benign (*Vellore Citizens'*; *A.P. Pollution Control Board v. Prof. M.V. Nayudu*, (1999) 2 SCC 718).
- **Polluter Pays Principle** — the polluter is liable to pay for the cost of pollution control, remediation of damage, and compensation to victims (*Vellore Citizens'*; *Indian Council for Enviro-Legal Action v. Union of India*, AIR 1996 SC 1446 — the “Bichhri village” case, where the Court directed erring industries to bear the cost of remedying environmental damage).
- **Public Trust Doctrine** — natural resources like air, sea, waters, and forests are held by the State in trust for public use and enjoyment and cannot be transferred to private ownership for commercial use, recognised in *M.C. Mehta v. Kamal Nath*, (1997) 1 SCC 388 (Span Motels case, Beas river diversion).
- **Absolute Liability** — *M.C. Mehta v. Union of India* (Oleum Gas Leak Case), 1987 (discussed in Unit II).
- **Inter-generational Equity** — the present generation holds natural resources in trust for future generations (*State of Himachal Pradesh v. Ganesh Wood Products*, (1995)).
- Expansion of Article 21 to include the right to a healthy/wholesome environment (as discussed above).
- Use of expert committees, continuing mandamus, and monitoring mechanisms in complex, polycentric environmental litigation.

10. Role of Green Belt Development — Purpose and Advantage

- **Green belts:** Zones of planted vegetation/forest cover maintained around industrial areas, cities, and highways to act as a buffer against pollution.

- **Purpose:** Absorption of pollutants and dust, noise attenuation, temperature moderation (urban heat island mitigation), prevention of soil erosion, aesthetic and recreational value, and maintaining ecological balance in rapidly urbanising/industrialising areas.
 - **Advantages:** Improves air quality, acts as a carbon sink, provides habitat for urban biodiversity, enhances groundwater recharge, and creates a visual/physical separation between industrial and residential zones, thereby reducing direct exposure of residential populations to industrial pollution.
 - Mandated in several environmental clearance conditions and municipal/town-planning regulations, and directed by courts in specific cases (e.g., around polluting industrial clusters).
-

UNIT V: International Environmental Law

1. International Environmental Regime — Overview

- International environmental law comprises treaties, customary international law, general principles, and soft-law declarations governing state conduct affecting the global environment, given that environmental harm frequently transcends national boundaries.

2. Transnational Pollution and State Liability

- **Transboundary/transnational pollution:** Pollution originating in one state causing harm in another (e.g., acid rain, river pollution, nuclear fallout, marine pollution).
- **Trail Smelter Arbitration (USA v. Canada), 1941:** Foundational case establishing the principle that **no state has the right to use or permit the use of its territory in such a manner as to cause injury to the territory of another state** — the origin of the “no-harm principle” (*sic utere tuo ut alienum non laedas*) in international environmental law.
- **State liability/responsibility:** States may be held internationally responsible for transboundary environmental harm caused by activities within their territory or control, reflected in **Principle 21 of the Stockholm Declaration** and **Principle 2 of the Rio Declaration**.

3. Customary International Law in the Environmental Context

- Certain environmental principles have attained (or are argued to have attained) the status of customary international law, binding even on non-signatory states, including: the no-harm/good neighbourliness principle, the duty to conduct environmental impact assessment for activities with significant transboundary effects, the duty to cooperate and notify/consult on shared resources, and (more contested) the precautionary principle and sustainable development.

4. Liability of Multinational Corporations

- MNCs pose unique challenges since international law traditionally binds *states*, not private corporations directly.
- The **Bhopal Gas Tragedy (Union Carbide, 1984)** starkly illustrated the difficulties of holding MNCs accountable across jurisdictions — questions of forum (CIIA courts declined jurisdiction on *forum non conveniens*), parent-subsidiary liability, and inadequacy of compensation under domestic settlement (Bhopal Gas Leak Disaster (Processing of Claims) Act, 1985) remain widely studied.
- Emerging soft-law instruments (UN Guiding Principles on Business and Human Rights, 2011; OECD Guidelines for Multinational Enterprises) increasingly seek to impose environmental/human-rights due-diligence obligations on corporations, though binding international liability regimes remain underdeveloped.

5. Stockholm Declaration on the Human Environment, 1972

- Adopted at the **UN Conference on the Human Environment**, Stockholm, June 1972 — the first major international conference to treat environmental issues as a global concern.
- Contains a Preamble and **26 Principles**, including:
 - **Principle 1:** Right to a healthy environment (fundamental right to freedom, equality, and adequate conditions of life in an environment permitting a life of dignity and well-being).
 - **Principle 21:** States have the sovereign right to exploit their own resources, but the responsibility to ensure activities do not cause damage to other states or areas beyond national jurisdiction.
- Led directly to the establishment of **UNEP** and inspired India's own Environment (Protection) Act 1986, Water Act 1974, and Air Act 1981.

6. Role of UNEP (United Nations Environment Programme)

- Established in 1972 pursuant to the Stockholm Conference, headquartered in Nairobi, Kenya.
- **Functions:** Coordinating international environmental activities, assisting states in developing environmental policy, monitoring the state of the global environment, facilitating and servicing major environmental treaties/conventions (e.g., CBD, Basel, Montreal Protocol secretariats), and promoting sustainable development.

7. Ramsar Convention, 1971 (Wetlands)

- Convention on Wetlands of International Importance, especially as Waterfowl Habitat, signed at Ramsar, Iran, 1971.
- Provides for designation of wetlands of international importance ("Ramsar sites") and commits parties to promote their conservation and "wise use." India is a party, with a substantial and growing number of Ramsar sites (e.g., Chilika Lake, Keoladeo National Park, Sundarbans Wetland).

8. Bonn Convention, 1979 (on Migratory Species) — note on Unit numbering “1992”

- **Convention on the Conservation of Migratory Species of Wild Animals (CMS)**, signed at Bonn, Germany in **1979** (came into force 1983) — aims to conserve terrestrial, aquatic, and avian migratory species throughout their range.
- India is a party (accession in 1983) and has hosted CMS COP13 in 2020, adopting the “Gandhinagar Declaration.”

9. Nairobi Convention/Declaration, 1982 and CFCs

- The **Nairobi Declaration, 1982** marked the 10th anniversary of the Stockholm Conference and reviewed the state of implementation of the Stockholm Action Plan, expressing concern about ongoing environmental degradation.
- Concerns over CFCs and ozone depletion led subsequently to the **Vienna Convention (1985)** and the **Montreal Protocol (1987)**.
- (Note: There is also a separate regional “Nairobi Convention” (1985) for protection of the marine and coastal environment of the Eastern African region — students should verify which is intended by the specific syllabus reference.)

10. Biodiversity Convention (Earth Summit), 1992

- The **Convention on Biological Diversity (CBD)** was opened for signature at the **UN Conference on Environment and Development (UNCED)**, the “Earth Summit,” held at **Rio de Janeiro, 1992**.
- **Three objectives:** (i) conservation of biological diversity; (ii) sustainable use of its components; (iii) fair and equitable sharing of benefits arising from utilisation of genetic resources (access and benefit-sharing, later elaborated by the **Nagoya Protocol, 2010**).
- The Rio Summit, 1992 also produced the **Rio Declaration on Environment and Development** (27 principles, including the precautionary and polluter pays principles, and the concept of sustainable development), the **UNFCCC**, the **UN Convention to Combat Desertification**, and **Agenda 21** (a comprehensive action plan for sustainable development).
- India enacted the **Biological Diversity Act, 2002** to implement its CBD obligations (see Unit III).

11. Kyoto Protocol, 1997

- Adopted under the UNFCCC at Kyoto, Japan, 1997 (entered into force 2005).
- Set legally binding **greenhouse gas emission reduction targets** for developed countries (Annex I parties), based on the principle of “**common but differentiated responsibilities**” (CBDR) — recognising that developed countries bear greater historical responsibility for GHG emissions.
- Introduced flexible/market-based mechanisms: **Clean Development Mechanism (CDM)**, **Joint Implementation**, and **Emissions Trading**.
- India, as a developing country, had no binding emission-reduction targets under Kyoto but participated actively in the CDM.

12. Johannesburg Conference/Declaration, 2002

- **World Summit on Sustainable Development (WSSD)**, Johannesburg, South Africa, 2002 — held ten years after the Rio Earth Summit (“Rio+10”) to review progress on Agenda 21.
- Adopted the **Johannesburg Declaration on Sustainable Development** and the **Johannesburg Plan of Implementation**, emphasising poverty eradication, sustainable production/consumption patterns, and protection of natural resources as pillars of sustainable development.

13. UN Framework Convention on Climate Change (UNFCCC), 1992

- Adopted at the Rio Earth Summit, 1992 (entered into force 1994); India is a party.
- **Objective** (Article 2): Stabilisation of GHG concentrations in the atmosphere at a level that would prevent dangerous anthropogenic interference with the climate system.
- Establishes the principle of **common but differentiated responsibilities and respective capabilities (CBDR-RC)**.
- The UNFCCC is the parent treaty under which the **Conference of Parties (COP)** meets annually, and under which both the Kyoto Protocol and the Paris Agreement were subsequently adopted.

14. UN Climate Change Conference (COP21) and the Paris Agreement, 2015

- **COP21** was held in Paris, France, in **December 2015**; the **Paris Agreement** was adopted there and opened for signature in **2016** (entered into force November 2016) — hence often associated with “2016” in syllabi.
 - **Key features:**
 - Aims to hold the increase in global average temperature to **well below 2°C** above pre-industrial levels, and to pursue efforts to limit the increase to **1.5°C**.
 - Departs from Kyoto’s top-down binding targets in favour of a **bottom-up** approach: each country submits its own **Nationally Determined Contributions (NDCs)**, to be updated and strengthened every five years (the “ratchet mechanism”).
 - Retains CBDR-RC but applies it more flexibly (“in light of different national circumstances”) to all parties, not just developed countries.
 - Provides for climate finance, technology transfer, and capacity-building support from developed to developing countries.
 - Establishes a transparency framework for tracking progress on NDCs, and a global stocktake every five years.
 - India ratified the Paris Agreement in 2016 and has submitted successive NDCs, including net-zero emissions targets announced at COP26 (Glasgow, 2021) for achievement by 2070.
-

Quick Reference: Key Case Table

Case	Citation	Principle
Rylands v. Fletcher	(1868) LR 3 HL 330	Strict liability
M.C. Mehta v. UOI (Oleum Gas)	AIR 1987 SC 1086	Absolute liability
Municipal Council, Ratlam v. Vardhichand	AIR 1980 SC 1622	Magistrate's duty to abate public nuisance (S.133 CrPC)
Rural Litigation and Entitlement Kendra v. State of UP	AIR 1988 SC 2187	Article 21 and environment; Dehradun quarrying
Subhash Kumar v. State of Bihar	AIR 1991 SC 420	Right to pollution-free water/air under Art. 21
Vellore Citizens' Welfare Forum v. UOI	AIR 1996 SC 2715	Sustainable development, precautionary & polluter pays principles
Indian Council for Enviro-Legal Action v. UOI	AIR 1996 SC 1446	Polluter pays; Bichhri case
M.C. Mehta v. Kamal Nath	(1997) 1 SCC 388	Public trust doctrine
M.C. Mehta v. UOI (Taj Trapezium)	(1997) 2 SCC 353	Art. 19(1)(g) subject to environmental restriction
A.P. Pollution Control Board v. Prof. M.V. Nayudu	(1999) 2 SCC 718	Precautionary principle, burden of proof
T.N. Godavarman Thirumulpad v. UOI	(1997) 2 SCC 267 & ongoing	Expansive definition of "forest"; continuing mandamus
Minerva Mills v. UOI	AIR 1980 SC 1789	Limits of Article 31C immunity
Trail Smelter Arbitration	(1941) 3 RIAA 1905	No-harm principle in international law

Note: These notes are compiled as a study aid synthesising the prescribed syllabus with well-established legal principles from the suggested readings (Rosencranz & Divan, Paras Diwan, Leela Krishnan, etc.) and leading case law. For exam purposes, cross-check citations and the latest amendments (e.g., BNS/BNSS renumbering, CRZ 2019, Hazardous Waste Rules 2016) against current bare acts, as legislative provisions and section numbers are periodically revised.